

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 07/20/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdHhldz09>

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion - Only Demurrer/MTS

1. 9:00 AM CASE NUMBER: C23-00217
CASE NAME: PETER KORWIN VS. CALIFORNIA AUTOMOBILE INSURANCE COMPANY
HEARING ON DEMURRER TO: CROSS-COMPLAINT
FILED BY: KORWIN, PETER
TENTATIVE RULING:

Before the Court is Plaintiff/Cross-Defendant Peter Korwin's Demurrer to Cross Complaint by California Automobile Insurance Company and Mercury Insurance Company.

Defendants Demurrer is **OVERRULED** as set forth below.

Factual Allegations and Procedural Background

This matter pertains to an insurance coverage dispute between Plaintiff and Defendants. Plaintiff filed his initial complaint on January 30, 2025, alleging claims of breach of contract and breach of the

implied covenant of good faith and fair dealing (*i.e.* bad faith) against Defendants California Automobile Insurance Company (“CAIC”) and Mercury Insurance Company (“MIC”) (collectively “Defendants”). The claim relates to a fire that occurred at Plaintiff’s residence in April 2020 and regards what coverage was available under the relevant insurance policies.

Defendants filed their Answer on May 5, 2023, denying the allegations and asserting twenty-five affirmative defenses.

Plaintiff filed a First Amended Complaint on April 13, 2026. It included the same two causes of action, but added some factual allegations and included “Waiver, Estoppel or Forfeiture Affirmative Defenses” against the Defendants.

Defendants filed an Answer to the FAC on May 15, 2026. They also filed the Cross-Complaint at issue, which asserts a single cause of action for declaratory relief.

Standard for Demurrer

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be “liberally construed” and a demurrer “overruled if any cause of action is stated by the plaintiff.” (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; *see Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer may be filed to one of several causes of action in a complaint. (Cal. R. Ct. 3.1320(b).)

Analysis

Pleading a Declaratory Relief Cause of Action

Plaintiff’s main argument is that Defendants have failed to properly plead a claim for declaratory relief.

To qualify for declaratory relief, a party must allege “two essential elements: ‘(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [plaintiff’s] rights or obligations....’” (*Wilson & Wilson v. City Council of Redwood City* (2011) 191 Cal.App.4th 1559, 1582.) “To be entitled to declaratory relief the party need not establish a right to a favorable decision.” (*Lockheed Martin Corp. v. Con’l Ins. Co.* (2005) 134 Cal.App.4th 187, 221 (disapproved on other grounds by *State of Calif. v. Allstate Ins. Co.* (2009) 45 Cal.4th 1008, 1036.)

“A complaint for declaratory relief is legally sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the parties under a written instrument or with respect to property and requests that the rights and duties of the parties be adjudged by the court.” (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 606 *quoting Wellenkamp v. Bank of America* (1978) 21 Cal.3d 943, 947.)

The Cross-Complaint alleges that CAIC issued Plaintiff an insurance policy (“Policy”) that provided

certain coverage for Plaintiff's residence located at 30 Ramona Drive, in Orinda, California (the "Property"). (¶¶ 4-9.) The Policy includes a limit of liability of \$403,000 for Coverage A – Dwelling, which covers the Property. (¶ 5-9.) The Policy also indicates that an additional amount may be available under the Enhanced Home Package, Additional Replacement Cost provision. (*Ibid.*)

In April 2020, CAIC received notice of a fire at the Property. (¶ 10.) CAIC accepted the claim and paid Plaintiff \$463,380.92 under the Coverage A – Dwelling provision mentioned above, as well as approximately \$372,000 under other provisions of the Policy (not at issue here). (¶ 11.) In October 2020, Plaintiff demolished the Property and notified CAIC that he intended to build a different, larger home. (¶ 12.) Currently, the land remains an empty lot. (*Ibid.*)

The Cross-Complaint then alleges two separate disputes regarding the coverage. First, CAIC alleges that Plaintiff "contends that CAIC owes him additional payments under Coverage A – Dwelling" even though CAIC has already paid more than the \$403,000 policy limit available under the provision. (¶ 13.) CAIC disputes Plaintiff's claim. Second, it is alleged that Plaintiff "also contends that CAIC currently owes the additional amounts of insurance above the Coverage A limit that may be available under the Enhanced Home Package endorsement, which is \$201,500..." (¶ 14.) Defendants dispute Plaintiff's position. (*Ibid.*) Instead, Defendants contend that any additional amounts "are only available if the rebuild costs actually incurred by [Plaintiff] exceed the limit of \$403,000." (*Ibid.*) No additional amounts are due under the Policy because Plaintiff has not actually incurred costs to rebuild the Property that exceed \$403,000. (*Ibid.*)

The above allegations sufficiently allege that there is an actual present controversy regarding what benefits Plaintiff is entitled to under the Policy. As noted by Defendants, Plaintiff even alleges in his FAC that the Defendants have breached the Policy by failing to make an additional payment of \$201,500 "above the Dwelling policy limit..." up to a "cap of \$604,500..." (FAC ¶ 16.) This confirms that there is a dispute between the parties concerning the amount potentially still due and owing under the Policy.

Other Arguments

Plaintiff also asserts several other arguments, such as the demurrer is "untimely, not in good faith and unnecessary under the circumstances," and that allowing the cross-complaint will prejudice his right "to a timely jury trial before the five (5) year statute of limitations." Plaintiff provides no facts nor legal citations to support these arguments.

Every memorandum of points and authorities "must contain a statement of facts, *a concise statement of the law*, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. R. Ct. 3.1113 (b).) Rule 3.1113 prevents the "trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934.)

Plaintiff has failed to adequately support these arguments.

Conclusion

Plaintiff and Cross-Defendant's Demurrer is **OVERRULED**.

2. 9:00 AM CASE NUMBER: C24-00566
CASE NAME: LA TONYA BROOKS VS. GEICO INDEMNITY COMPANY
*HEARING ON MOTION IN RE: STRIKE 4TH AMENDED COMPLAINT
FILED BY: GEICO INDEMNITY COMPANY
TENTATIVE RULING:

Denied as moot. See line 3.

3. 9:00 AM CASE NUMBER: C24-00566
CASE NAME: LA TONYA BROOKS VS. GEICO INDEMNITY COMPANY
HEARING ON DEMURRER TO: 4TH AMENDED COMPLAINT
FILED BY: GEICO INDEMNITY COMPANY
TENTATIVE RULING:

Before the Court is Defendant Geico Indemnity Company's Demurrer to Plaintiff's Fourth Amended Complaint ("FAC").

Defendant's Request for Judicial Notice is **granted**.

Factual Allegations and Procedural Background

Plaintiff filed her initial complaint on March 11, 2024. Geico filed a motion to quash and a demurrer to the complaint. While the demurrer was pending, Plaintiff filed a First Amended Complaint on July 2, 2024. Geico filed a demurrer and motion to strike directed toward the First Amended Complaint – which were not opposed by Plaintiff. As such, the Court sustained the demurrer and granted the motion to strike. The Court granted Plaintiff leave to amend.

On November 7, 2024, Plaintiff filed a Second Amended Complaint. Geico again filed a demurrer and motion to strike. On January 16, 2025, while the demurrer and motion to strike were pending, Plaintiff filed a Third Amended Complaint. The Court ultimately sustained the demurrer and granted the motion to strike relating to the Second Amended Complaint. The Court again granted leave to amend, noting that "the Third Amended Complaint filed on January 16, 2025, is accepted by this court as the current operative complaint."

Geico filed a demurrer and motion to strike directed toward the Third Amended Complaint. The Court sustained the demurrer in full and granted Plaintiff leave to amend.

Plaintiff filed her Fourth Amended Complaint ("4AC") on October 21, 2025. The 4AC alleges four causes of action against Defendant Geico: (1) Breach of Written Contract; (2) Breach of Implied Covenant of Good Faith and Fair Dealing; (3) Bad Insurance Faith, and (4) Negligence. Geico demurs to each of the causes of action as being uncertain and for failure to allege facts to support each cause of action.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("Doe")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and

with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 (“*Doheny*”).)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Analysis

The Court notes that Plaintiff does not substantively address any of Geico’s arguments in her Opposition to the Demurrer. Instead, she casts aspersions on Geico’s counsel and argues that the reason she did not attach or quote from her insurance policy is because she did not have a copy and Geico refused to provide her with a copy.

Plaintiff boldly asserts: “**GEICO has systematically and intentionally withheld those exact policy documents from Plaintiff from the inception of this case.**” (Opp. at 1:24-25 bold in original.) She states that she was “forced to bypass defense counsel entirely, utilizing the California Department of Insurance (Consumer Services Case No. 8717650) and formal discovery mechanisms to compel production.” (*Id.* at 1:25-26.) She says she only received the Policy documents after the 4AC was drafted.

On Reply, Geico’s counsel makes clear that Plaintiff’s contentions are false – or at least misleading. In fact, Plaintiff did not even **request** a copy of the Policy until **after** she filed her Fourth Amended Complaint. The Fourth Amended Complaint was filed on October 21, 2025, and Plaintiff’s Request for Production of Documents (Set One) is dated April 27, 2026 – over six months later. (LeHendro Dec. Ex. E.) This was the first time Plaintiff requested a copy of the Policy. (*Id.* ¶ 8.)

As for the need to ‘bypass defense counsel’ and utilize the California Department of Insurance process, Geico requests judicial notice of the Request for Assistance (“Request”) filed by Plaintiff. (RJN Ex. C.) It shows that Plaintiff submitted her request on the same date she served her request for production of documents – April 27, 2026. Again, this was six months after she filed her 4AC. The Request indicates that Plaintiff had **not** contacted Geico before submitting the Request. The fact that she submitted her Request on the same date she formally requested a copy of the Policy from defense counsel undermines her claim that she was “forced to bypass defense counsel.”

The Court will remind Plaintiff that “Pro. Per litigants are held to the same standards as attorneys.” (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) Thus, courts “see no reason why the rules of professional conduct, at least as those rules govern conduct in the actual course of litigation, should not apply to pro per litigants in the very cases where pro per litigants elect to act as their own attorneys.” (*Ibid.*) “To say otherwise would be to give pro per litigants ... an unfair advantage over parties represented by attorneys bound by the code.” (*Ibid.*) “Under those rules, an attorney may not intentionally mislead the court. [citation] Neither may a pro per.” (*Ibid.*)

Making false or misleading arguments to the Court is not acceptable when done by an attorney. Nor are they acceptable when made by a self-represented litigant. “[S]elf-represented litigants ‘must expect and receive the same treatment as if represented by an attorney – no different, no better, no worse.’” (*Nuno v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 811 quoting *Taylor v. Bell* (1971) 21 Cal.App.3d 1002, 1009.) Plaintiff is warned that she will be held to the same

standards as counsel in these proceedings and should act accordingly.

As to the substance of GEICO's arguments, Plaintiff appears to concede that the 4AC is deficient. She notes in her Opposition that with the "insurance contract explicitly in hand, a 5AC will flawlessly cure" all Geico's concerns about the 4AC. (Opp at 4:2-3.) She also clearly states that the "Demurrer can be fully cured in a Fifth Amended Complaint." (Opp. at III B.)

It is accepted that the failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue"]; *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 ["failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot"]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) By failing to substantively address Geico's arguments, Plaintiff concedes all the contentions and arguments in the moving papers.

While the Court is not impressed with Plaintiff's actions in these proceedings, especially the meritless claims against counsel for Geico, it is mindful of the fact that Plaintiff only recently obtained the Policy which she claims provides the basis for her claims. The main argument made by Geico throughout these proceedings is that Plaintiff has failed to attach the Policy or identify specific portions thereof that support her claims. Granted Plaintiff should have sought a copy of the Policy long ago. However, now that she has the Policy, as well as the Guarantee which Geico also provided, Plaintiff should be given leave to amend a final time to attempt and properly plead her case.

Generally, leave to amend should be given unless the complaint 'shows on its face that it is incapable of amendment.' (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 688 citation omitted; *Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412.) "[I]t is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.'" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.)

Conclusion

Defendant's demurrer is **SUSTAINED**. Plaintiff is **GRANTED** leave to amend. Plaintiff shall file any amended complaint within 21 days of notice of entry of this order.

4. 9:00 AM CASE NUMBER: C25-00149
CASE NAME: AMIR SAFFARIAN VS. ALI HASSAN
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: ARREAGA, GUILLERMO ARMANDO MARTINEZ
TENTATIVE RULING:

Plaintiffs' Demurrer to the First Amended Cross-Complaint was inadvertently vacated from the calendar. That motion is reset for hearing to **September 21, 2026, at 9:00 a.m. in Department 34**. The Martinez Defendants' Demurrer to the Second Amended Complaint, currently set for July 20, 2026, is **continued** to the same date so both matters may be heard together.

Plaintiffs' counsel shall give notice of this order to all parties.

5. 9:00 AM CASE NUMBER: C25-03125
CASE NAME: JAMES GUIDRY VS. FELICIA PHO
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT
FILED BY:
TENTATIVE RULING:

Defendant Felicia Pho's motion to strike punitive damages allegations is **denied**.

Background

This is an action for breach of the implied warranty of habitability and related claims arising from a residential tenancy. The following facts are taken from the allegations of Plaintiff James Guidry's complaint filed on October 24, 2025, which the court accepts as true for purposes of this motion.

Plaintiff resided at 517 Eaker Way in Antioch, pursuant to a written lease agreement between Plaintiff's spouse Patricia Costa and Defendant. (Complaint ¶ 9.) The complaint alleges that at the time of Plaintiff's move-in, the premises were infested with ants and cockroaches, that water leaked from a light fixture in the primary bedroom into the first-floor bathroom, and that the premises had a faulty electrical wiring system causing constant outages. (*Id.* ¶ 15.) Plaintiff alleges he notified Defendant of these conditions, that Defendant responded that Plaintiff would need to pay for repairs himself, and that Plaintiff hired a plumber on multiple occasions to seal the bathtub and toilet without success, for which he was never reimbursed. (*Id.* ¶ 16.) The complaint further alleges that the Housing Authority of the County of Contra Costa inspected the property on May 16, 2024, and that the unit failed the inspection due to multiple habitability issues, after which Defendant served Plaintiff and his family with a sixty-day notice to move out, claiming the need to make repairs but denying relocation assistance. (*Id.* ¶¶ 17-18.) Plaintiff alleges he and his family vacated the premises on May 30, 2024, due to Defendant's alleged harassment. (*Id.* ¶ 19.)

The complaint asserts five causes of action based on these allegations: (1) tortious breach of the implied warranty of habitability under Civil Code sections 1941 et seq.; (2) breach of the covenant of quiet enjoyment under Civil Code section 1927; (3) contractual breach of the implied warranty of habitability under Civil Code section 1941; (4) violation of the Antioch Tenant Protection Ordinance; and (5) constructive eviction based on negligence. The complaint also includes a separate claim for exemplary damages, alleging that Defendant "intentionally violated Plaintiff's rights and retaliated against Plaintiff for enforcing [his] rights as a tenant" (Complaint ¶ 58), and that Defendant's conduct was willful and undertaken in conscious disregard of Plaintiff's rights within the meaning of Civil Code section 3294. (*Id.* ¶ 59, Prayer, C.)

Defendant moves to strike Plaintiff's punitive damages allegations on the ground that the complaint fails to plead facts, as opposed to conclusions, sufficient to establish oppression, fraud, or malice under Civil Code section 3294. Defendant argues that leave to amend should be denied because Plaintiff will not be able to cure the defect.

Plaintiff opposes the motion, arguing that the complaint adequately alleges that Defendant knew of longstanding defective conditions and failed to correct them, and retaliated against Plaintiff and his family by serving a notice to move out shortly after the failed housing inspection. If the court is inclined to grant the motion, Plaintiff requests leave to amend.

Meet and Confer

The motion is supported by the declaration of counsel, Shelly Stuppiello, attesting that the parties met

and conferred by telephone on December 2, 2025, and that Plaintiff's counsel declined to stipulate to removal of the punitive damages prayer, satisfying Code of Civil Procedure section 435.5.

Legal Standards

Punitive damages are appropriate when a defendant acted with malice, oppression, or fraud. (Civ. Code, §3294, subd. (a).) "Malice" is defined as conduct intended to cause injury to a person or despicable conduct carried on with a willful and conscious disregard for the rights or safety of others. (*Turman v. Turning Point of Cent. Cal., Inc.* (2010) 191 Cal.App.4th 53, 63.) "Oppression" means despicable conduct subjecting a person to cruel and unjust hardship, in conscious disregard of the person's rights. (*Ibid.*) "Fraud" is an intentional misrepresentation, deceit, or concealment of a material fact known by defendant, with intent to deprive a person of property, rights or otherwise cause injury. (*Ibid.*)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) "In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Ibid.*) "In ruling on a motion to strike, courts do not read allegations in isolation." (*Ibid.*) Conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud or malice. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042.)

Analysis

Punitive damages are recoverable against a landlord in a habitability action where the complaint alleges ultimate facts showing the landlord's failure to repair was not merely negligent but was carried out with knowledge of the conditions and a conscious disregard of the tenant's rights. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 919-921; *Penner v. Falk* (1984) 153 Cal.App.3d 858, 867.)

Defendant characterizes the complaint as alleging nothing more than an ordinary failure to repair. Plaintiff alleges Defendant did not merely neglect to fix the infestation and wiring defects present at Plaintiff's move-in, but Defendant told Plaintiff he would have to pay for the repairs himself. (Complaint ¶ 16.) That allegation, read in Plaintiff's favor as it must be on this motion, describes an affirmative response shifting onto the tenant a repair obligation the law places on the landlord, not a landlord who simply failed to get to it. A jury could reasonably infer conscious disregard of a tenant's rights from a landlord's decision to tell a tenant to bear the cost of conditions the landlord was obligated to correct, rather than from delay or inaction alone.

The complaint also alleges that after the Housing Authority's inspection confirmed the premises failed to meet applicable housing quality standards, Defendant served Plaintiff and his family a sixty-day notice to move out, stating that repairs needed to be made, but without offering relocation assistance. (Complaint ¶¶ 17-18.) Plaintiff alleges this notice was part of a pattern of harassment intended to force Plaintiff and his family to vacate. (*Id.* ¶¶ 22-23.) The timing of the notice, following a code enforcement finding Defendant had not addressed on its own, supports a reasonable inference of retaliatory intent.

These allegations are sufficient at the pleading stage to support a claim that Defendant acted with willful and conscious disregard of Plaintiff's rights. Whether Plaintiff will ultimately be able to prove malice, oppression, or fraud by clear and convincing evidence is beyond the scope of this motion.

6. 9:00 AM CASE NUMBER: C25-03333

CASE NAME: YESENIA RICO VS. JANE WANG

HEARING ON DEMURRER TO: CROSS-COMPLAINT

FILED BY: RICO, YESENIA

TENTATIVE RULING:

Cross-Defendant Yesenia Rico's demurrer to cross-complaint, and alternative motion to strike, is **continued to August 17, 2026 at 9:00 a.m.** in Department 34.

This action arises from a residential tenancy at 2065 Olivera Road, Unit D, a condominium in Concord. Plaintiff Yesenia Rico filed the operative complaint against her landlords, Jane Wang and Patrick Huang, alleging habitability defects in the unit. Wang and Huang filed a cross-complaint against Yesenia Rico and Noe Rico alleging that they breached the parties' written lease and committed waste on the property, based on alleged violations of the condominium's CC&Rs, physical damage to the unit, and refusal to permit access for inspection and repair. Rico demurs to the breach of contract and waste causes of action in the cross-complaint and, in the alternative, moves to strike certain allegations.

Before filing a demurrer, the demurring party must meet and confer in person, by telephone, or by video conference with the party who filed the pleading subject to demurrer, for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41(a).) A declaration setting forth those efforts must accompany the demurrer. (Code Civ. Proc., § 430.41(a)(3).) The same meet and confer requirement applies to a motion to strike. (See Code Civ. Proc. § 435.5(a).)

Rico's counsel, Conrad Kuyawa, sought to satisfy this requirement by directing his paralegal to send a letter to Cross-Complainants' counsel, Gerard Lam, setting out the asserted defects in the cross-complaint. (April 28, 2026 Kuyawa Decl., ¶¶ 3-4, Exh. A.) In his reply declaration, Kuyawa asserts that this exchange was adequate because the letter was drafted at his direction and approved by him before it was sent, because section 430.41 does not require that meet and confer correspondence be transmitted by the attorney personally, and because a language barrier between counsel made a written exchange the more reliable way to avoid misunderstanding. (July 9, 2026 Kuyawa Decl., ¶¶ 5, 7, 11-12.)

Section 430.41(a) requires that the parties meet and confer in person, by telephone, or by video conference, not that one side send the other a letter stating its position. It is unclear whether the statute permits counsel to satisfy this requirement through a paralegal rather than personally, but even setting that question aside, a written exchange standing alone does not satisfy the statute. Nothing in this order precludes counsel from following an oral or video conference with a written confirmation of what was discussed and any agreements reached, which may be a good practice here.

The Court observes that the cross-complaint as currently pled does not identify the lease provision allegedly breached and does not separately state its theories of recovery. The pleading combines three theories of recovery: reimbursement for HOA fines arising from alleged CC&R violations, damages for waste to the property, and breach of a lease provision permitting entry for inspection and repair, none of which is separately stated or numbered as required by California Rules of Court, rule 2.112. The parties are encouraged to address these issues, along with any others raised in the moving and opposing papers, in a genuine effort to resolve them before the continued hearing. If the parties reach an agreement that Cross-Complainants will file an amended cross-complaint, they are

encouraged to notify the Court in advance of the continued hearing.

Accordingly, the demurrer is continued for counsel to meet and confer as required by the Code of Civil Procedure and this order. If the parties are unable to resolve the issues raised in the demurrer, and the Court's tentative ruling on the merits is contested, counsel may appear at that hearing to argue. Attorney Kuyawa shall file and serve a declaration describing the results of the meet and confer **no later than August 7, 2026.**

**7. 9:00 AM CASE NUMBER: C26-00404
CASE NAME: RAKEISHA HILL VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CITY OF RICHMOND**

TENTATIVE RULING:

Introduction

Before the Court is Defendant City of Richmond's ("Defendant" or "The City") Demurrer to all causes of action in Plaintiff Rakeisha Hill's ("Plaintiff") First Amended Complaint "FAC". The FAC filed on April 20, 2026, contains three causes of action: 1) FEHA Disparate Treatment; 2) FEHA Retaliation; and 3) Whistleblower Retaliation.

For the following reasons, the **Demurrer to the FAC is sustained in part and overruled in part. The first cause of action is sustained with leave to amend, the second cause of action is overruled, and the third cause of action is sustained without leave to amend.**

Meet and Confer Requirement

Defendant satisfied its meet and confer requirement regarding their Demurrer in detailing their meet and confer efforts with Plaintiff's counsel in the Declaration of Charles R. Hellstrom. On May 13, 2026, Defendant emailed a meet and confer letter to Plaintiff. The next day the parties discussed the issues set forth in the meet and confer letter and were unable to come to an agreement. (Hellstrom Decl. at ¶¶3-4.)

Request for Judicial Notice

Defendant City of Richmond request that two exhibits be judicially noticed. Exhibit 1 is Plaintiff Rakeisha Hill's Government Claim and Application for Leave to Present Late Claim, dated September 16, 2025, and received by the City on September 19, 2025. Exhibit 2 is an October 31, 2025, letter from George Hills Company, Inc., the City's claims administrator, to Plaintiff denying Plaintiff's Application for Leave to Present a Late Claim.

Evidence Code section 452, subdivision (c), permits the Court to take judicial notice of "[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States." Defendant argues that judicial notice is proper under Exhibits 1 and 2 are City records concerning Plaintiff's attempted compliance with the Government Claims Act and the City's official action on Plaintiff's late-claim application. Courts may take judicial notice of the existence, filing, and contents of government claim documents and public entity records, though not the truth of disputed factual allegations contained in those documents. (See *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376 [where plaintiff alleges claim-presentation compliance, but public records do not reflect compliance, the public entity may request judicial notice under Evid. Code, § 452(c).])

Judicial Notice for Defendant's Exhibit 1 and 2 is granted.

Statement of Facts

The facts as alleged in the First Amended Complaint "FAC" are as follows.

Plaintiff alleges that she began working for the Richmond Police Department ("RPD") as a Police Records Specialist on or about April 20, 2009, completed probation in that position in April 2010, and was promoted to Police Officer Trainee on or about January 23, 2023. (FAC ¶¶ 9–11.) In that capacity, the City sponsored Plaintiff's attendance at the Contra Costa County Law Enforcement Training Center ("Academy"). (Id. at ¶ 11.)

Plaintiff struggled with certain Academy training requirements, including the Emergency Vehicle Operations Course ("EVOC") and Defensive Tactics, Arrest and Control ("DTAC"). (FAC at ¶¶ 14–19.) Lieutenant Daniel Reina canceled supplemental EVOC training and "rebuffed" DTAC training. (Id. at ¶¶ 17–18.) On March 29, 2023, Lieutenant Reina asked whether she had a "learning disability" and later referenced a "psychological disorder." (Id. at ¶¶ 19–21.) On April 21, 2023, Plaintiff was terminated from Academy Class 197 after an unsuccessful EVOC remediation attempt, but the City later re-sponsored her for Academy Class 198. (Id. at ¶¶ 22–23.)

During Class 198, Plaintiff was pressured to re-complete TASER and drive-stun exposure training, and Academy personnel made comments about recruits who screamed or declined optional drive-stun exposure. (FAC. at ¶¶ 24–27.) On August 20, 2023, she filed a complaint with POST against Academy personnel alleging "hazing and unfair treatment" of Plaintiff and other recruits. (Id. at ¶ 28.) Plaintiff believed the POST complaint would be confidential. (Id. at ¶ 29.)

After she filed the POST complaint, Sergeant Miles Bailey notified her of a Contra Costa County Sheriff's Office Internal Affairs investigation involving Academy staff. (FAC at ¶¶ 30–32.) Sergeant Bailey later requested a copy of the POST complaint, and Plaintiff provided it because she understood the request to be an order from a commanding officer. (Id. at ¶¶ 33–34.) Sergeant Bailey later acknowledged that senior command staff, including Police Chief Bisa French, were aware of the POST complaint. (Id. at ¶ 35.) Plaintiff continued to experience intimidation at the Academy, including a November 8, 2023 "Building Search" admonition, and later heard from an unspecified source that she had been called a "snitch." (Id. at ¶¶ 38–43.)

Plaintiff graduated from the Academy on January 5, 2024, and was sworn in as a probationary police officer on January 8, 2024. (FAC. at ¶¶ 42, 48.) Plaintiff was told by an unspecified individual that some Field Training Officers were reluctant to train her because of her POST complaint and perceived her as a "disciplinary risk." (Id. at ¶¶ 44–47.) On February 5, 2024, Plaintiff requested a two-week delay before beginning the Field Training Program ("FTP"), citing fatigue and "burnout" after completing two Academy classes. (Id. at ¶ 49.) Captain Eric Smith placed her on administrative leave and ordered her to undergo a Fitness-for-Duty Evaluation. (Id. at ¶¶ 50–54.) Plaintiff was later found fit for duty and returned to work. (Id. at ¶ 54.)

Plaintiff began field training, advanced to Phase 2 on or about May 19, 2024, and was placed on injury leave after a prior knee injury flared. (FAC at ¶¶ 57–58.) Captain Smith told her she had improved in Phase 2 and encouraged her to return earlier than her physician recommended. (Id. at ¶ 59.) Plaintiff returned to work in September 2024, completed firearms training, and was assigned to FTP Team 1 with FTO Daniel Campos, which meant she was returned to Phase 1 despite having previously advanced to Phase 2. (Id. at ¶¶ 60–63.)

In early October 2024, Plaintiff was summoned to appear before the Probationary Review Board

("PRB"). (FAC at ¶¶ 64–65.) FTO Campos identified concerns about DTAC and Code 3 driving and stated he would defer to the PRB whether Plaintiff should advance to Phase 2 or again repeat Phase 1. (Id. at ¶¶ 66–68.) Plaintiff appeared before the PRB on October 4, 2024. (Id. at ¶¶ 69–72.) As there was no indication that termination was being considered, she was directed to report to work on October 7, 2024, with the same FTO. (Id. at ¶¶ 72–74.)

On October 7, 2024, Plaintiff reported to work but was directed back to RPD headquarters. (FAC at ¶¶ 75–78.) Lieutenant Reina and Sergeant Bailey informed her that the PRB had decided to reject her from the FTP. (Id. at ¶ 78.) Plaintiff received a written notice from Chief French stating that she was rejected from probation for failure to meet performance standards. (Id. at ¶ 79.) Chief French stated the PRB had recommended that Plaintiff repeat Phase 1 again, and that the concern was Plaintiff becoming a "liability" for the RPD. (Id. at ¶ 80.) Chief French stated that if Plaintiff were ever involved in an officer-involved shooting, questions could arise regarding Plaintiff's suitability to be an officer because she had repeated Phase 1 multiple times. (Id.) Chief French also stated she could not return to her prior Police Records Specialist position because there were no available positions. (Id. at ¶ 83.)

Plaintiff alleges she should have been returned to her prior permanent civil service position rather than processed as fully terminated. (FAC at ¶¶ 84, 87–88.) However, because she believed she had been terminated entirely, she took an early pension disbursement and thereby lost "hundreds of thousands of dollars" in retirement benefits she claims she would have received within six years. (Id. at ¶¶ 85, 116–117, 131.) On or around October 20, 2024, Chief French advised that Plaintiff could return to the RPD as a Records Specialist. (Id. at ¶ 86.)

Plaintiff alleges her termination was motivated by assumptions about her fitness for duty, her gender, her age, her willingness to complain about academy hazing, and perceptions that she might report future misconduct. (FAC at ¶¶ 89, 98, 114–115.) Plaintiff further alleges younger or similarly situated probationary officers received additional training opportunities or were returned to civilian positions. (Id. at ¶¶ 90–95, 111–119.)

Plaintiff alleges she exhausted administrative remedies by sending a November 20, 2024 "claim packet" to the Richmond City Attorney, Kimberly Chin, even though the City Attorney responded that the office could not accept service and that the documents "have not been received by the City of Richmond." (FAC at ¶¶ 99–102.) As shown in Exhibit A to Plaintiff's FAC, Ms. Chin advised that she was not authorized to accept service, and she directed Plaintiff to submit her claim packet to the City Clerk. (FAC Exhibit A.) There is no allegation that Plaintiff followed this directive.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Uncertainty is a well-established ground of demurrer. (*Martin v. Bank of San Jose* (Cal. App. 1929) 98 Cal. App. 390.) The objection of uncertainty does not go to failure to allege sufficient facts but to

doubt as to what the pleader means by the facts alleged. (*Brea v. McGlashan* (1934) 3 Cal. App. 2d 454.) A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made. (*Butler v. Sequeira* (1950) 100 Cal. App. 2d 143.) A Complaint is ambiguous and uncertain where it cannot be ascertained therefrom whether acts complained of were committed by defendants in their individual capacity, or in one of other capacities in which they are alleged to have acted. (*Lapique v. Ruef* (1916) 30 Cal. App. 391.)

Analysis

First Cause of Action for FEHA Disparate Treatment

To establish a claim for discrimination, a plaintiff must demonstrate that: “(1) she was a member of a protected class; (2) she was qualified for the position she sought or was performing competently in the position held; (3) she suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstances [that] suggest a discriminatory motive.” (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 354.) In addition, a plaintiff must show that her protected class was a substantial motivating reason for the adverse employment action. (See *Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 233.)

Discriminatory Motive

Defendant contends that The First Cause of Action does not allege facts supporting a reasonable inference that Plaintiff’s race, sex, age, disability, perceived disability, or medical condition substantially motivated the City’s decision to reject her from probation or temporarily process her as separated from employment. Instead, the FAC alleges in broad strokes that the City acted because of Plaintiff’s “gender,” “age,” “perceived deficiencies,” knee injury, leave request, and supposed propensity to “whistle blow.” (FAC ¶¶ 89, 114–115.)

Contrary to Defendant’s stance the allegations in the FAC do meet the pleading standards. The FAC alleges Plaintiff is a member of multiple protected classes, including race, gender, age, disability/perceived disability, and medical condition. (See, e.g., FAC at ¶¶ 108, 115.) Plaintiff had and was performing competently for years at the Department and was progressing toward non probationary officer status. (Id. at ¶ 62, 116.) Plaintiff suffered adverse employment actions, which included rejection from probation and separation from employment. (Id. at ¶¶ 75-83.) More importantly, and directly in contradiction to Defendant’s reading of the FAC, circumstances exist suggesting discriminatory motive, namely that “similarly situated, yet younger officers whose purportedly confidential POST complaints were not made public knowledge, enjoyed different experiences by being offered multiple attempts to complete the FTP and/or being offered alternative civilian roles upon dismissal from FTP, despite known performance concerns.” (Id. at ¶ 90.)

Exhaustion of Administrative Remedies

An employee who wants to bring a civil action under the FEHA must exhaust the administrative remedy provided by the statute by first filing a complaint with the Civil Rights Department (“CRD”) and obtaining from the CRD a notice of right to sue. (See Gov. Code, § 12960.) The timely filing of an administrative complaint is a prerequisite to bringing a civil action for damages. (*Wawrzynski v. United Airlines, Inc.* (2024) 106 Cal.App.5th 663, 694.) The scope of a civil action is limited to those facts that could have reasonably been uncovered from an investigation into the CRD complaint. (*Wills v. Superior Court* (2011) 194 Cal.App.4th 312, 322-326.) “Failure to exhaust administrative remedies is a jurisdictional procedural defect which bars court action.” (*Barnes v. State Bd. of Equalization* (1981)

118 Cal.App.3d 994, 1001.)

Defendant contends that Plaintiff's age theory cannot support the First Cause of Action because Plaintiff did not exhaust age discrimination in her administrative filings. Neither of the CRD complaints attached as Exhibits B and C1 to the FAC identifies age as a protected basis – that claim would not have been explored through an investigation by the CRD or the City, because Plaintiff omitted it.

A similar situation came up *Yurick* where the Third District Court of Appeal concluded that a "plaintiff's claim of gender discrimination alleged in her administrative charge did not encompass the cause of action for age harassment alleged against Yurick in her lawsuit. To permit her to pursue that cause of action would undermine vital policy interests embodied in FEHA, i.e., the resolution of disputes and elimination of unlawful employment practices by conciliation." (*Yurick v. Superior Court* (1989) 209 Cal.App.3d 1116, 1123.) Here, neither the October 28, 2025, or the January 26, 2026, Civil Right Complaint includes an allegation of age discrimination. (FAC Exhibits B and C.)

The Court will grant leave to amend since the Plaintiff could possibly amend a complaint to include age discrimination.

The Demurrer as to Plaintiff's first cause of action for FEHA disparate treatment is sustained with leave to amend.

Second Cause of Action for Breach of FEHA Retaliation

To establish a claim of FEHA retaliation, a plaintiff must show: (1) she engaged in a protected activity; (2) the City subjected her to an adverse employment action; and (3) a causal link existed between the protected activity and the adverse action. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.) An employee engages in FEHA-protected activity when: (1) she makes a charge, testifies, assists or participates in any manner in proceedings or hearings under the statutes; or (2) opposes acts made unlawful by the FEHA. (See Gov. Code, § 12940(h).) To this end, the employee must oppose conduct she/he reasonably believes constitutes unlawful discrimination, and "complaints about personal grievances or vague or conclusory remarks that fail to put an employer on notice as to what conduct it should investigate will not suffice to establish protected conduct." (*Yanowitz*, supra, 36 Cal.4th at 1047.)

POST Complaint

Defendant argues that the POST Complaint filed by Plaintiff alleges Academy hazing, unfair treatment, training practices, and abuse of authority which is not a protected activity under FEHA. (Motion at pp. 15-16.)

Plaintiff rebuts Defendant's argument by stating FEHA (via Section 12940(j)(1)) prohibits "harassment" which broadly includes behavior toward employees or trainees that equates to bullying or hazing. (Gov. Code § 12940(j)(1).) Plaintiff also points to the prospect that FEHA accordingly protects any employee who opposes conduct she reasonably and in good faith believes to be discriminatory – "whether or not the challenged conduct is ultimately found to violate the FEHA." (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1043.)

The Demurrer as to Plaintiff's second cause of FEHA retaliation is overruled.

Third Cause of Action for Labor Code Section 1102.5 Whistleblower Retaliation

The Government Claims Act establishes conditions precedent to filing suit for money or damages

against a public entity. (Gov. Code §§ 905, 911.2, 945.4.) Claims for personal injury must be presented within six months after accrual. (Gov. Code § 911.2(a).) Timely claim presentation is not merely procedural; it is a condition precedent to maintaining suit against a public entity. (*State of California v. Superior Court (Bodde)* (2004) 32 Cal.4th 1234, 1239-1245.)

A claim against a public entity for “injury to person” must be presented no later than six months after accrual. (Gov. Code § 911.2(a).) The claim may only be “presented” by delivering it to (or mailing it to) the clerk, secretary, or auditor, or by mailing it to the governing body at its principal office. (Gov. Code § 915(a).) “Compliance with section 915(e)(1) requires actual receipt of the misdirected claim by one of the designated recipients. If an appropriate public employee or board never receives the claim, an undelivered or misdirected claim fails to comply with the statute.” (*DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983, 992-993.)

“The failure to timely present a proper claim ... bars a plaintiff from filing a lawsuit against that entity.” (*Gong*, supra, 226 Cal.App.4th at 374.) Thus, “[e]ven if the public entity has actual knowledge of facts that might support a claim, the claims statutes still must be satisfied. [Citation.]” (*DiCampli-Mintz*, supra, 55 Cal.4th at 990.) If the plaintiff’s complaint does not allege facts establishing such exhaustion of administrative remedies, it is subject to demurrer. (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 325-326.)

Government Claims Presentation

Labor Code section 1102.5 claims against public entities are subject to the Government Claims Act. (See *Le Mere v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 237, 247 248.)

The FAC also alleges that the City Attorney responded that the City Attorney’s Office could not accept service and that the documents “have not been received by the City of Richmond.” (FAC at ¶ 101.) This defeats proper presentation under Government Code section 915.

The City’s judicially noticeable claim correspondence confirms the defect. After the ineffective email to the City Attorney, Plaintiff submitted an Application for Leave to Present Late Claim, dated September 16, 2025. (RJN, Ex. 1.) That application acknowledged the claim was not presented within the six-month claim period and sought leave to present a late claim under Government Code section 911.4. (Id.) The City denied the late claim on October 31, 2025. (RJN, Ex. 2.) The denial notice advised Plaintiff that, before filing suit, she was required to petition the Court for relief under Government Code section 945.4, and that any such petition had to be filed within six months of the denial. (RJN, Ex. 2.)

RE: Our Client: City of Richmond
GHC Claim #: GHC0088399
Master Claim #: 2025-0205
Claimant: Rakeisha Hill
Date of Loss: October 7, 2024

DENIAL OF APPLICATION FOR LEAVE TO PRESENT A LATE CLAIM

As the claims administrator for the City of Richmond, George Hills provides the following notice:

Consistent with Government Code section 911.8, notice is hereby given that the Application for Leave to Present Late Claim, which you presented to the City of Richmond, on September 16, 2025, was denied on October 31, 2025.

WARNING

If you wish to file a court action on this matter, you must first petition the appropriate court for an order relieving you from the provisions of Government Code Section 945.4 (claims presentation requirement). See Government Code Section 946.6. Such petition must be filed with the court within six (6) months from the date your application for leave to present a late claim was denied.

That six-month deadline expired on April 30, 2026. (Motion at p. 18: 2-3.) Plaintiff did not allege or provide evidence of her filing of a Government Code section 946.6 petition by that deadline.

This failure is fatal to the Labor Code section 1102.5 claim. The defect is procedural, jurisdictional in effect, and incurable by another amendment.

Plaintiff argues that she substantially complied with Government Code section 911.2's notice requirements. Plaintiff reasons that they provided notice to the Richmond City Attorney and that she had a year to bring her claim. Both reasons are wrong. Under California Government Code Section 915, a city attorney is not the statutorily designated recipient for government claims. To be legally valid, the claim must be presented to the city clerk, secretary, auditor, or the governing body. (Gov. Code § 915.) A violation of Labor Code section 1102.5 mandates that government tort claim be presented within six months of the acts as required by the Government Claims Act. (*Willis v. City of Carlsbad* (2020) 48 Cal.App.5th 1104, 1110.)

The Demurrer is sustained without leave to amend as to the third cause of action for Labor Code Section 1102.5 Whistleblower Retaliation.

Conclusion

For the reasons analyzed above, the **Demurrer to the FAC is sustained in part and overruled in part. The first cause of action is sustained with leave to amend, the second cause of action is overruled, and the third cause of action is sustained without leave to amend. The amended pleadings shall be filed within 15 days of service of notice of entry of this order.**

8. 9:00 AM CASE NUMBER: C26-00404
CASE NAME: RAKEISHA HILL VS. CITY OF RICHMOND
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF FIRST AMENDED COMPLAINT

Introduction

Defendant City of Richmond bring a Motion to Strike related to four categories of allegations (i) doe defendant and punitive damages allegations; (ii) age-discrimination allegations and additional factual allegations that were not pleaded in Plaintiff's CRD complaints; (iii) pension-loss theory allegations; and (iv) statutory damages under Labor Code section 1102.5.

For the following reasons, the **Motion to Strike is granted for the doe defendants and punitive damages allegations and denied as to all other requests.**

Defendants request that the following portions to be stricken:

1. From the caption, the following words: "and DOES 1 through 20, inclusive," (p. 1, ln. 14.);
2. From the title of the pleading, the following words: "AND DOES 1 THROUGH 20" (p. 1, ln. 14-15);
3. From the introductory paragraph of the FAC, the following words: "and Does 1 through 20 inclusive," (p. 1, ln. 19);
4. Paragraph 4, in its entirety;
5. Paragraph 5, in its entirety (p. 2, ln. 6-10);
6. From paragraph 6, the following words: "and Does 1 through 20 (the latter based on information and belief)" (p. 2, ln. 12-13);
7. Paragraph 20, in its entirety;
8. Paragraph 21, in its entirety;
9. Paragraph 24, in its entirety;
10. Paragraph 25, in its entirety;
11. Paragraph 26, in its entirety;
12. Paragraph 27, in its entirety;
13. Paragraph 38, in its entirety;
14. Paragraph 39, in its entirety;
15. Paragraph 40, in its entirety;
16. Paragraph 41, in its entirety;
17. Paragraph 43, in its entirety;
18. Paragraph 85, in its entirety;
19. From paragraph 89, the following words: "her age, and" (p. 14, ln. 6);

20. From paragraph 90, the following words: “yet younger” (p. 14, ln. 11);
21. From paragraph 91, the following words: “aside from their age and” (p. 14, ln. 15);
22. From paragraph 95, the following word: “younger” (p. 15, ln. 7);
23. From the heading to the First Cause of Action, the following words: “(Alleged Against All Defendants)” (p. 16, ln. 15);
24. From paragraph 108, the following words: “who was forty-three years of age when she entered the Academy and was forty-four years of age when she was wrongfully terminated” (p. 16, ln. 27-28);
25. From paragraph 112, the following words: “were younger and” (p. 17, l. 13);
26. From paragraph 114, the following words: “and age,” (p. 17, l. 20);
27. Paragraph 116, in its entirety;
28. Paragraph 117, in its entirety;
29. From paragraph 118, the following words: “including the forced early withdrawal of retirement funds and associated financial losses” (p. 18, ln. 15-16);
30. From paragraph 119, the following words: “interruption of CalPERS benefits, or” (p. 18, ln. 19);
31. Paragraph 120, in its entirety;
32. From paragraph 121, the following words, to the extent Plaintiff seeks speculative future pension-related damages: “additional pecuniary losses to be proven at trial, consequential damages,” (p. 18, ln. 28; p. 19, ln. 1);
33. From paragraph 121, the following words: “punitive damages pursuant to Civil Code section 3294 and” (p. 19, ln. 1-2);
34. From the heading to the Second Cause of Action, the following words: “(Alleged Against All Defendants)” (p. 19, ln. 7);
35. From paragraph 124, the following words: “and some or all of the Doe Defendants” (p. 19, ln. 13);
36. Paragraph 131, in its entirety;
37. From paragraph 132, the following words: “(inclusive of the yet to be named Doe Defendants)” (p. 20, ln. 27);
38. Paragraph 133, in its entirety;
39. From paragraph 134, the following words: “(including the yet to be named Doe Defendants)” (p. 21, ln. 5);
40. From paragraph 134, the following words, to the extent Plaintiff seeks speculative

future pension-related damages: “additional pecuniary losses to be proven at trial, consequential damages,” (p. 21, ln. 7-8);

41. From paragraph 134, the following words: “punitive damages pursuant to Civil Code section 3294 and” (p. 21, ln. 8-9);

42. From the heading to the Third Cause of Action, the following words: “(Against All Defendants)” (p. 21, ln. 13);

43. From paragraph 144, the following words: “the Doe Defendants, among others,” (p. 22, ln. 17);

44. From paragraph 144, the following words: “and Doe Defendants” (p. 22, ln. 19);

45. From paragraph 144, the following words: “and punitive damages given the Defendant City and Doe Defendants acted oppressively, fraudulently and maliciously as alleged in this Complaint” (p. 22, ln. 19-20);

46. Prayer for Relief, paragraph 6, in its entirety, if the Court sustains the City’s demurrer to the Third Cause of Action for Labor Code section 1102.5 retaliation, without leave to amend;

47. Prayer for Relief, paragraph 7, in its entirety.

Meet and Confer Requirement

Defendant satisfied its meet and confer requirement regarding their Demurrer in detailing their meet and confer efforts with Plaintiff’s counsel in the Declaration of Charles R. Hellstrom. On May 13, 2026, Defendant emailed a meet and confer letter to Plaintiff. The next day the parties discussed the issues set forth in the meet and confer letter and were unable to come to an agreement. (Hellstrom Decl. at ¶¶3-4.)

Legal Standard

A court’s determination of a motion to strike is a matter within its discretion. (*Clements v. T.R. Bechtel Co.* (1954) 43 Cal.2d 227, 242.) When ruling on a motion to strike, the court must read the allegations subject to the motion as a whole, with all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Spielholz v. Superior Court* (2001) 86 Cal.App.4th 1366, 1371.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from any matter which the court may judicially notice. (Civ. Proc. Code § 437.) A motion to strike may not be based on “extrinsic evidence showing that the allegations are ‘false’ or ‘sham.’ Such challenges lie only if these defects appear on the face of the complaint, or from matters judicially noticeable.” (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial, ¶7:168 (TRG 2023).) Scandalous allegations can be properly stricken. (*Bartling v. Glendale Adventist Medical Center* (1986) 184 Cal.App.3d 961, 970.) Moreover, matters which are not essential or relevant to any statement or claim for relief should also be stricken. (C.C.P. § 431.10(b)(1), (2).)

The court may strike any irrelevant, false, or improper matter from any pleading. (Code Civ. Proc., § 436(a).) The court may also strike out all or any portion of any pleading not drawn in conformity with the laws of this state. (Code Civ. Proc., § 436(b).) “Irrelevant matter,” as the term is used in section

436, means "immaterial allegation." (Code Civ. Proc., § 431.10(c).) Code of Civil Procedure § 431.10(b) defines "immaterial allegation" as, among others, a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

Analysis

Doe Defendants And Punitive Damages Allegations

Defendant proffers that the parties agreed and Plaintiff filed a request for dismissal of the doe defendants and Plaintiff's claims for punitive damages. (Hellstrom Decl. at ¶ 5.) Plaintiff does not dispute this category of item to be stricken. (Opposition at p. 1 fn. 1.) Motion to Strike doe defendants and punitive damages allegations is granted.

Age Discrimination Allegations And Additional Factual Allegations That Were Not Pleaded In Plaintiff's CRD Complaints

As described in the Demurrer ruling, Defendant's Demurrer as to the first cause of action was sustained with leave to amend, thus mooted this request. Motion to Strike age discrimination allegations and other allegations not pleaded in Plaintiff's CRD Complaints is denied.

Pension Loss Theory Allegations

Defendant argues that the alleged damages asserted in the FAC are not just speculative, but impossible. Defendant points out that the FAC seeks damages based on Plaintiff's early withdrawal from a pension that she claims would have matured within six years. (FAC ¶¶ 85, 116–119, 131.) She alleges she thereby lost "hundreds of thousands of dollars" in future retirement benefits. (Id. at ¶¶ 85, 117, 131.)

Defendant relies on *Miller* for the proposition that an employee has no vested right to remain in public employment for a particular number of years in order to earn a larger future retirement allowance. (Motion at p. 12: 19-23 citing *Miller v. State of California* (1977) 18 Cal.3d 808, 813-818.) Defendant cites *Toscano* for the position that future lost earnings through retirement were too speculative where the theory assumed the plaintiff would have remained employed until retirement. (Reply at p. 7: 7-9 citing *Toscano v. Greene Music* (2004) 124 Cal.App.4th 685, 696-97.) These cases are factually distinguishable because both the *Miller* and *Toscano* plaintiffs were left their respective jobs and did not return while here Plaintiff was fired as a police officer and then allowed to return to her previous job she held as a records specialist and was part of the same CalPERS pension plan.

The Court also notes that *Miller* was a Supreme Court review of a Writ of Mandamus, while *Toscano* was an Appellate Court review of a trial award. The procedural posture in this current motion is a challenge of the pleadings not a decision on the merits. The issue of whether the pension loss theory is viable is a mixed question of law and fact.

An issue of fact cannot be determined on a motion to strike or at the pleading stage in general. (*Litinsky v. Kaplan* (2019) 40 Cal.App.5th 970, 982.) Whether Plaintiff's reliance was reasonable, whether her withdrawal was foreseeable, and the quantum of damages are questions of fact that cannot be resolved on a motion to strike. It would be inappropriate for the Court to strike the pension loss theory allegations at this time

The Court denies the Motion to Strike statutory damages under Labor Code section 1102.5.

Statutory Damages Under Labor Code Section 1102.5

As described in the Demurrer ruling, Defendant's Demurrer as to the third cause of action was sustained without leave to amend, thus mooting this request. Motion to Strike age statutory damages under Labor Code section 1102.5 is denied.

Conclusion

As analyzed above, the **Motion to Strike is granted for the doe defendants and punitive damages allegations and denied as to all other requests. The amended pleadings shall be filed within 15 days of service of notice of entry of this order.**

**9. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: REFLECTIONS MAINTENANCE ASSOCIATION
*TENTATIVE RULING:***

The Court continues the hearing on this motion to August 17, 2026 at 9:00 a.m.

**10. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF COMPLAINT
FILED BY: REFLECTIONS MAINTENANCE ASSOCIATION
*TENTATIVE RULING:***

The Court continues the hearing on this motion to August 17, 2026 at 9:00 a.m.

**11. 9:00 AM CASE NUMBER: MSC21-01664
CASE NAME: DUGGAN VS. BDM ASSOCIATION
HEARING IN RE: MOTION TO CONFIRM TRIAL DATE FILED ON 5/21/26 BY MOLLY DUGGAN, ERIK COCHRAN, AND GABRIELLA DUGGAN-COCHRAN
FILED BY:
*TENTATIVE RULING:***

Plaintiffs' motion consists of two parts: (1) Motion to Confirm Trial Date and (2) Establish Tolling Date under CCP 583.340.

- (1) The trial date of 1/28/27, 10:00am, in Dept. 34 was set by Hon. Leonard E. Marquez at the Case Management/Trial Setting Conference held on 4/28/26 in the ordinary course of the Court's case management.

At the Trial Setting Conference, Plaintiffs appeared without an attorney, and Attorney Kere Tickner appeared representing the Defendant. The trial date was not objected to by Attorney Tickner, and the date was confirmed by "Trial Setting Order/Pretrial Orders (Jury)." Also, the

Order sets an Issue Conference on 1/21/27, 9:30am, in Dept. 34. Moreover, the Order states: "Pursuant to the Order entered 4/8/26, the Trial is Phase 1 of the bifurcated trial." In addition to agreeing to the trial date, no one raised even a possibility that the date selected violated the 5 year cutoff of CCP 583.310.

Defendant and its attorneys now oppose the Motion to Confirm the Trial Date based on the argument that the 5 year statutory period (CCP 583.310) to bring the matter to trial expires on 8/12/26 and at the time the trial date was agreed to, they were unaware of the fact the 5 year period would have already expired because Defendant's attorney made an "error in calculation" relating to Covid-19 extensions. It is not clear when or the circumstances under which the Defendants or its attorneys actually determined that the trial date was set beyond the expiration of the 5 year cutoff, and the most which is stated is by one of Defendant's attorneys Kathryn Marshall, Esq. in her Declaration is that the Defendants' attorneys discovered they had made a mistake at some point following the 4/28/26 Trial Setting Conference in calculating the date the statute ran and then notified the Plaintiffs who then filed the present motion. Plaintiffs do not address this issue.

For the time being, the trial date, issue conference and related dates are confirmed.

- (2) The Court needs further information in order to rule on the tolling date under CCP 583.40. Therefore, on or before 8/20/26, each side shall file declarations under oath relating to the circumstances and date under/on which they discovered that they were mistaken about the date on which the cutoff to bring the case to trial would occur, how the mistake was made, what and when action was taken and why and whether either side did anything to mislead or prevent any action from being taken to set an earlier trial date.

Plaintiffs dispute the CCP 583.310 issue raised for a number of other reasons which will be addressed by the Court in its subsequent order hereinafter referred to.

Following receipt of the requested additional information, the Court will serve its ruling on the parties.